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# PRIVY COUNCIL

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OF THE VIBE JUSTICE SYSTEM (VJS)

*Neutral Citation Number*

**[2026] REALM-PC 9**

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*IN THE MATTER OF*

*How should the Legal Department capture/synthesise its learnings - may it build a Sweet & Maxwell / Restatement-style practitioner textbook, and how should it be structured?*

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**Before:**

Coade J

Date: 5 **June** 2026

*REQUEST FOR RULING*

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## JUDGMENT

## **[2026] LEXBY-HARVEY-FI 4 - RE THE PRACTITIONER TREATISE**

### **(CAPTURING LEARNINGS)**

1. Tier: First Instance (Coade J, sitting alone, s. 18). Decided: 2026-06-05.  
Disposition: permitted; no appeal needed.
2. Question (Principal): how should the Legal Department capture/synthesise its learnings - may it build a Sweet & Maxwell / Restatement-style practitioner textbook, and how should it be structured?

### **HOLDING**

1. Permitted - as a PRODUCT artifact, not governance. A practitioner treatise is the Legal Department's secondary-literature layer: the Restatement of its own practice, a doctrinal synthesis above the atomic skills. It is persuasive product doctrine - it states how the capability is practised; it commands nothing of the realm. It is NOT the VPR, SPEC-LAW, or governance caselaw; not a parallel statute, citator, sovereign, or "private-sector law" (the public/private-law framing is rejected - s. 9: one statute book, no competing sovereigns). It binds no bench, takes no LEXBY-\* citation. A treatise reports doctrine; it does not enact it.
2. Structure - chapters per capability over ONE department; never sub-departments. Sub-departments fail the SPEC-LAW-3 split test on all three gates (single-source / demonstrated-need / severability) and offend consolidation. One treatise, organised into chapters per capability: Chapter 1 = Corporate Due Diligence (the first and only proven capability); add each later capability as a further chapter under the same book. Lives in the agents-final legal references/ tier (the synthesised-doctrine layer, distinct from skills/ and playbooks/). Open with one chapter; grow a chapter at a time; do not pre-stand-up empty capability sub-departments.
3. Relationship - four artifacts, four roles, no overlap.
4. - Governance (VPR/SPEC-LAW/LEXBY caselaw): strict severance. The treatise may cite binding governance (as a textbook cites the statute constraining the practice) but may not restate, paraphrase, enact, or enter the LEXBY namespace.
5. - Skills catalogue: the treatise is the canopy above the leaves - it weaves the atomic skills + harvested learnings (L1-L8) into coherent chapter doctrine; it references skills, never duplicates a skill's content as a second source.
6. - Per-issue product records (RIDGELINE-ISSUE-NN): the records are the raw worked examples; the treatise is doctrine distilled from them, one-directional and provenance-filtered - only the generic, anonymised proposition/method, never the specific WHAT.

4. Anti-cheat constraints (binding, SC-3 / FI-1 / FI-2): HOW-only intake; a per-sentence provenance/disguise test; VPR-8 anonymisation when drawing from records (fabricated or fully-generalised illustrations, never planted facts); sealed-room boundary (the treatise never ingests run\_eval, the rubric, or task.json); no answer-key-vehicle; honest-scoring temporal limb (never re-score a harvested task to credit treatise content); disclosure + uniform application if any chapter is ever injected into a scored prompt.
5. Destination: product skills/references tier (agents-final legal references/).

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RATIO DECIDENDI - THE BINDING HOLDING

*A practitioner treatise is permitted as a PRODUCT artifact, not governance: it is the Legal Department's synthesised-doctrine (reference) layer above the atomic skills, organised as chapters per capability within one department (sub-departments barred by the SPEC-LAW-3 split test), living in the agents-final legal reference tier and never in the LEXBY series or the VPR/SPEC-LAW, and it must be built provenance-clean on the HOW alone (SC-3 / FI-1 / FI-2), never ingesting or encoding the rubric or any per-issue WHAT, so it can never become an answer-key vehicle for a scored task. Governing law applied: s. 21, s. 14, s. 9, SC-3 / FI-1 / FI-2, consolidation-over-fragmentation, SPEC-LAW-3.*

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GOOD-LAW

Citation: [2026] REALM-PC 9

**PROGRESSION** *Constitutional matter. Appeal lies by automatic leapfrog certificate (s. 13, s. 20), bypassing the Court of Appeal, direct to the Supreme Court.*

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*Handed down by the PRIVY COUNCIL of the Vibe Justice System (VJS). 5 June 2026.*